

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-004
Amendments to Title 5 of the Chickasaw Nation Code
(Code Section References)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, The Chickasaw Tribal Legislature has previously enacted rules and procedures codified at Title 5 of the Chickasaw Nation Code, and

WHEREAS, The Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 5-207.1

PETITION FOR APPEAL FROM FINAL DECISION OF A CHICKASAW NATION COMMISSION.

A. This Section shall not apply to appeals from final decisions of the Chickasaw Nation Election Commission regarding challenges for candidacy, which are governed by Title 8, Section ~~8-200.9~~ 8-209, *et seq.*, of the Chickasaw Nation Code or for challenges regarding voting privileges, which are governed by Title 8, Section ~~8-300.7~~ 8-307 *et seq.*, of the Chickasaw Nation Code.

SECTION 5-215.29

TIME LIMITATIONS.

Proceedings to vacate or modify a judgment, decree or order, for the causes mentioned in paragraphs 4, 5, and 7 of Section 5-215.22 above must be commenced within two (2) years after the filing of the judgment, decree or order, unless the party entitled thereto be an infant, or a person of unsound mind and then within two (2) years after removal of such disability. Proceedings for the causes mentioned in Paragraphs 3 and 6 of Section ~~5-215.22~~ 1031 of this title, shall be within three (3) years, and in Paragraph 9 of Section ~~5-215.22~~ 1031 of this title, within one (1) year after the defendant has notice of the judgment, decree or order. A void judgment, decree or order may be vacated at any time, on motion of a party, or any person affected thereby.

SECTION 5-301.9PROSECUTION OF OFFENSES.

A. No person shall be punished for an offense except upon a legal conviction, including a plea or admission of guilt or *nolo contendere* in open court, by a court of competent jurisdiction; provided, however, that no incarceration or other disposition of one accused of an offense prior to trial in accordance with this Act shall be deemed punishment, except that deemed so in accordance with Section ~~5-701.2~~ 5-702.

SECTION 5-1401.11FORM OF AGREEMENTS AND PROPOSED ORDERS.

A. No agreement referred to in Section ~~5-1401.10~~ 5-12401.10 above shall be approved by a Peacemaker unless:"

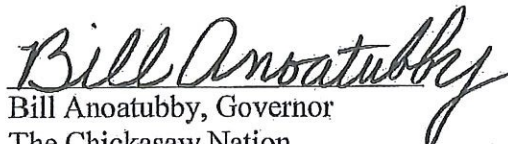
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 17, 2019, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: MAY 28 2019
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution approves and adopts corrections to referenced Code sections in Title 5 of the Chickasaw Nation Code.

Presented By: Legislative Committee